

Order to Show Cause

The court on its own motion schedules this matter for an order to show cause hearing regarding settlement and/or dismissal on **October 27, 2026 at 9:00 a.m. in Department 32**. The parties are reminded that any requested dismissal of class actions must meet the requirements of California Rules of Court, rule 3.770.

10. S-CV-0055953 Safe Nation Found. v. Wildlife Heritage Found.

The demurrer to the second amended complaint is continued to **October 6, 2026 at 8:30 a.m. in Department 32** to be heard together with another motion filed in this action. No further briefing is permitted.

11. S-CV-0056073 Berg, Jill Elaine v. Berg, Brendon

Motion for Leave to File a Second Amended Complaint

Plaintiffs' unopposed motion for leave to file a second amended complaint is granted. (Coe Civ. Proc., § 473, subd. (a).) Plaintiffs shall file and serve their second amended complaint by September 4, 2026.

12. S-CV-0056213 Mora, Michael F v. Cavanaugh, Shannon G

Cross-defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to the Cross-Complaint ("XC")

Cross-defendant demurs to the second cause of action of the cross-complaint for slander of title contending it fails to allege facts sufficient to state a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Cross-complainants oppose the demurrer.

Cross-defendant's request for judicial notice is granted.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)